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#### Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$10,000 for the plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

#### Ruling

1. The Motion is **granted**.
2. The Court finds that settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval.
3. Counsel are directed to prepare a proposed order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date.
4. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b).
5. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney’s fees are to be withheld by the administrator until released by the Court after review of the compliance statement. The Court may issue a release through an unreported minute order without a hearing on the compliance statement.
6. No appearance is required on May 20, 2026.

7. 9:00 AM CASE NUMBER: C23-03215  
CASE NAME: MICHAEL PETERSEN VS. GOLD BOND BUILDING PRODUCTS, LLC.  
\*HEARING ON MOTION IN RE: FINAL APPROVAL HEARING SET BY THE COURTROOM  
FILED BY:

**\*TENTATIVE RULING:\***

**Summary**

Plaintiff Michael Petersen ("Plaintiff") individually and on behalf of others similarly situated, moves for final approval of her class action and PAGA settlement ("Motion") with Defendant Gold Bond Building Products, LLC ("Defendant"). This Motion is **granted** as set forth herein. No appearance is required at the hearing on May 20, 2026.

**Background and Settlement Terms**

The original complaint was filed on December 19, 2023, raising class action claims on behalf of 254 non-exempt employees, alleging that Defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Plaintiff also represents a group of PAGA Members on behalf of the State of California as private attorney general pursuant to the California Labor Code Private Attorneys General Act of 2004 ("PAGA"). (Lab. Code, §§ 2698–2699.5.) The PAGA Members include any non-exempt hourly employee who works or worked for Defendant in California at any time from December 19, 2022, to January 28, 2026.

On or about January 28, 2026, the Court granted preliminary approval of the Settlement Agreement. Pursuant to that order, on March 11, 2026, Phoenix Settlement Administrators (the "Settlement Administrator" or "Phoenix") mailed the Court-approved Notice of Proposed Class Action Settlement (the "Class Notice") to all 254 Class Members.

Now, Plaintiff requests that this Court to grant final approval of the Settlement Agreement, and enter the Proposed Order and Final Judgment filed concurrently herewith:

1. Finally certifying the Settlement Class, as defined in the Settlement Agreement and the Court's Order Granting Preliminary Approval of the Class Action Settlement;
2. Finally appointing Plaintiff Michael Petersen as the Class Representative for purposes of settlement;
3. Finally appointing Joshua Falakassa of Falakassa Law, P.C. and Mehrdad Bokhour of Bokhour Law Group, P.C. as Class Counsel for purposes of settlement;
4. Finding that the Class Notice was properly provided to the Settlement Class in accordance with the Court's Order Granting Preliminary Approval of Class Action Settlement;
5. Finally approving the Settlement as fair, adequate, and reasonable, based upon the terms

set forth in the Settlement Agreement;

6. Binding Participating Class Members to the terms of the Settlement Agreement, including the Release specified therein; and

7. Retaining jurisdiction to enforce the Settlement Agreement.

The settlement would create a gross settlement fund of \$574,500. The class representative payment to plaintiff would be \$10,000. Attorney's fees would be \$191,500 (one-third of the settlement). Litigation costs would not exceed \$18,729.10. The settlement administrator's costs would not exceed \$8,000. PAGA payments will be made to LWDA in the amount of \$7,500 and \$2,500 to PAGA members. The net amount paid directly to the class members would be about \$336,270.90. The fund is non-reversionary. Based on the estimated class size of 254 people, the average net payment for each class member is approximately \$1,318.71.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendants during the class period.

The settlement contains release language covering "all claims and causes of action alleged in the Class Action Complaint; and (ii) any and all additional claims that reasonably could have been alleged based on the facts stated in the Operative Complaints[.]" (Settlement, Par. 5.2) Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Informal and formal written discovery was undertaken. The matter settled after arms-length negotiations. Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. Counsel attest that notice of the proposed settlement was transmitted to the LWDA.

#### **B. Legal Standards**

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.*

(2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

### **C. Attorney fees**

Plaintiff seeks one-third of the total settlement amount as fees (\$191,500), relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

At the Court’s direction, counsel have prepared a lodestar fee estimate, estimating \$114,862.60, based on 155.5 hours, at a blended rate of \$737.50 per hour. This results in an imputed multiplier of 1.66. This imputed multiplier is relatively high for this type of case, in this Court’s experience. In addition, however, the average individual payment is relatively high.

Litigation costs of \$18,729.10 are reasonable and are approved. Settlement administration costs in the amount of \$8,000 are reasonable and are approved.

The requested representative payment of \$10,000 for plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff committed a significant number of hours to assist with the investigation, litigation, and settlement processes of this case to assist on the matter. Plaintiff also spent considerable time helping prepare for and aid in the mediation and settlement process. He accepted undefined “risk” by doing so. Considering all of the factors, particularly the size of the settlement, the full requested payment is approved.

### **Ruling**

1. The Court finds that the settlement is fair, reasonable, and adequate, including the attorney's fees. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. The Court will sign a Proposed Order lodge with the Court on May 4, 2026 provided the terms are consistent with this ruling, and will set a compliance hearing date.
3. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
4. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
5. The compliance hearing will be held in Department 16 and will be set by the Clerk of the Court.
6. Provided Counsel prepares a compliance statement that conforms to the foregoing, the Court may vacate the compliance hearing via minute order.
7. No appearance is required at the hearing on May 20, 2026.

**8. 9:00 AM CASE NUMBER: C24-00866**

**CASE NAME: DEVLIN BRASWELL VS. ALLUVIUM, INC.**

**\*HEARING ON MOTION IN RE: APPROVING AND SETTLING THE RECEIVER'S FINAL REPORT AND ACCOUNTING**

**FILED BY:**

**\*TENTATIVE RULING:\***

#### **Summary**

Receive Kevin Singer's Motion to Approve and Settle the Receiver's Final Report filed on December 18, 2025 is **granted** as set forth herein.

#### **Background**

This Motion was continued from April 22, 2026 after the Court received and reviewed (1) Objections from Intervenor Patti O'Brien to the Receiver's Final Accounting Report, which is supported by the Declaration of Patricia Coleman filed on April 8, 2026; and (2) Opposition filed by Creditor and Lien Claimant Global Assets Lien and Foreclosures, LLC filed on April 9, 2026. The Court ordered no further briefings, but requested the Receiver to file replies to both filings. The Court reviewed the replies prepared by the Receiver. The Court's findings are addressed in the ruling below.

The Court received an untimely opposition from Non-Party AX9 Security, to which the Receiver lodged an objection. The objection is **sustained**. Non-Party AX9's objection is untimely. Moreover, even if untimely, AX9 is a former vendor who may have been owed a substantial balance from the pre-receivership period. No funds remain to pay AX9, whose claim is junior to the Receiver's fees and